

**STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:

William Gemmell

License No: 68-0176

Docket No. MH05-0696

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, through its Attorney General, William H. Sorrell, and Respondent William Gemmell, who stipulate and agree as follows:

1. The Vermont Board of Allied Mental Health Practitioners has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by licensed mental health counselors pursuant to 3 V.S.A. §§129, 129a and 814; 26 V.S.A. §§3262a, 3263, 3266, 3269, 3271, and the Rules of the Board and of the Office of Professional Regulation.
2. Respondent William Gemmell, of Brattleboro, Vermont, was and/or is a Mental Health Counselor, holding license number 68-0176, issued by the State of Vermont. This license was originally issued on about December 15, 1993 and (was conditional when) it lapsed on about January 31, 2001.
3. Pursuant to a Stipulation and Consent Order entered on about April 15, 1999 (attached and incorporated), Respondent was reprimanded and his license was conditioned for at least three years.
4. Respondent admits that he has not complied with any of the terms of the above Stipulation and Consent Order.
5. Respondent admits the conclusions of unprofessional conduct as set forth below in the Board's Order.

6. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
7. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
8. Respondent waives any notification period and agrees to have this document reviewed by the Board during the next available meeting. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced his rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
9. Respondent is not under the influence of any drugs or alcohol at the time he signs this Stipulation and Consent Order.
10. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
11. Respondent voluntarily waives his right to charges and a contested hearing before the Board.
12. Respondent agrees that the Board may set forth the order below.

ORDER

Based on the stipulations above it is **ORDERED AND ADJUDGED** as follows:

- A. The above act(s), omission(s) and/or circumstance(s), whether taken individually, together or in any combination, constitute unprofessional conduct and

violate 3 V.S.A. §129a(a)(4) (Failing to comply with an order of the board or violating any term or condition of a license restricted by the board).

B. The Board of Allied Mental Health Practitioners **REVOKES** the Respondent's license.

C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

STATE OF VERMONT
WILLIAM H. SORRELL
ATTORNEY GENERAL

Date: 6/10/02

by: 

William H. Ahlers
Assistant Attorney General

WILLIAM GEMMELL
RESPONDENT

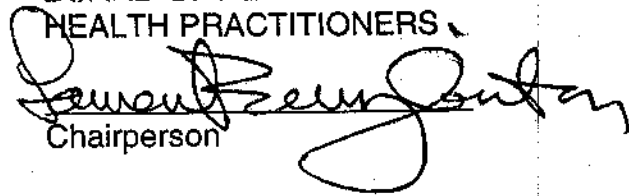
Date: 6/5/02


William Gemmell

ACCEPTED AND SO ORDERED:

BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Date: 6/20/02


Chairperson

Entry Date: 6/20/02

Office of the
ATTORNEY
GENERAL
109 State Street
Montpelier, VT
05609

IN RE:

Docket No. MH05-0696

STIPULATION

4. Respondent does not admit, but will not contest that, on or about July 3, 1996, he knowingly gave false information to a law enforcement officer with the

purpose to implicate another (specifically, saying that any errors in the above claim were made by a former bookkeeper, "B").

5. Respondent does not admit, but will not contest that, on or about December 1, 1998, he was convicted of [REDACTED] 13 V.S.A. §1754(a) (false report to a law enforcement officer, a misdemeanor) [Docket No. 1538-9-98 Wmcr], as a result of the above acts and/or omissions.
6. Respondent does not admit, but will not contest that, on various occasions continuing until about March 1998, his use of alcohol had impaired and/or had limited his ability to practice as a clinical mental health counselor with reasonable skill and safety.
7. Respondent does not admit, but will not contest, the unprofessional conduct as set forth herein and the conclusions and entry of the subsequent Order set forth below.
8. Respondent understands that the Board must review and accept the terms of this Stipulation and Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
9. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced his rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
10. Respondent is not under the influence of any drugs or alcohol at the time he signs this Stipulation and Consent Order.
11. Respondent waives his right to a contested hearing before the Board on any pending charges.

12. Respondent has read and reviewed this entire document and agrees it contains the entire agreement between the parties.

13. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this agreement.

ORDER

Based on the stipulations above it is **ORDERED AND ADJUDGED** as follows:

A. The above acts and/or omissions constitute unprofessional conduct pursuant to, and are also violations of, 26 V.S.A. § 3271(a)(2)* (willfully making or filing false reports); 26 V.S.A. § 3271(a)(5)* (failing to comply with the statutes governing the practice of clinical mental health counseling); 26 V.S.A. § 3271(a)(6)* (conviction of a crime related to the practice of clinical mental health counseling), and; 26 V.S.A. § 3271(a)(8)* (practicing clinical mental health counseling when medically or psychologically unfit to do so) [*since revised and/or incorporated in 3 V.S.A. §129a].

B. The above acts and/or omissions constitute unprofessional conduct pursuant to, and are also violations of, 3 V.S.A. §129a(a)(3) (failing to comply with the provisions of federal or state statutes or rules governing the practice of the profession); 3 V.S.A. §129a(a)(5) (practicing the profession when medically or psychologically unfit to do so); 3 V.S.A. §129a(a)(7) (willfully making or filing false reports); 3 V.S.A. §129a(a)(9) (conviction of a crime related to the practice of the profession or conviction of a felony).

C. The Board of Allied Mental Health Practitioners **REPRIMANDS** the Respondent, and hereby: **CONDITIONS** the Respondent's license to practice

commencing on the date this Order is entered by the Board, for a period of three (3) years. The **CONDITIONS** on Respondent's license are as follows:

(1) Abstain from Alcohol or Drug Use.

Respondent shall abstain completely from the consumption of alcohol or the use or possession of any drugs with the exception of prescribed medications as outlined in paragraph C(2).

(2) Drug Use Exception.

Respondent may take medications lawfully prescribed for a bona fide illness or condition by a physician, dentist, or nurse practitioner whose identity shall be made known to the Board in writing by Respondent within forty-eight (48) hours of the establishment of the practitioner/patient relationship. Respondent shall inform the Board in writing of all medications prescribed, including the name of the prescribing practitioner, within forty-eight (48) hours of receiving the prescription. The Board or its designee may request at any time that the practitioner document the continued need for prescribed medications

(3) Completion of Counseling and Treatment Plan.

Respondent shall enter into and continue counseling with a treating professional approved by the Board until the treating professional notifies the Board in writing that such counseling is no longer necessary in her/his professional opinion. Respondent shall comply with a treatment plan approved by the Board.

(4) Approval of Changes of Treating Professional.

Respondent shall obtain prior approval from the Board or its designee of all changes of treating professional. Failure to obtain prior approval of

a change of treating professional may be grounds for a charge of violation of this Consent Order.

(5) Substance Abuse Therapy and Notification to Treating Professional.

Respondent shall provide a copy of this Stipulation and Consent Order to his treating professional and cause his treating professional to inform the Board, in writing and on professional letterhead, of receipt of the Stipulation and Consent Order and the treating professional's ability to comply with the conditions related to treatment and with all other terms of this Consent Order.

(6) Reports from Treating Professional.

Respondent shall authorize and cause his treating professional to submit to the Board evidence of satisfactory progress with the treatment plan during the effective period of this Consent Order. These reports shall be submitted in writing on forms issued by the Board. The first report is due commencing the month after the date of entry of this Consent Order and subsequent reports are due every three months thereafter.

Respondent shall authorize his treating professional to provide all information requested by the Board, or its designee, either orally or in writing, at any time during the period this Consent Order is in effect.

(7) Random Alcohol/Drug Testing.

Respondent shall submit to random alcohol and/or drug screening at the request of the Board. Respondent shall ensure an identified contact person, approved by the Board, shall administer random drug and alcohol tests. All screens shall be negative except for drugs prescribed for him under the care of a

physician, dentist, or nurse practitioner. (See paragraph C(2) Drug Use Exception).

(8) Completion of Continuing Education

Respondent shall complete, during the current extension of his license, all continuing education requirements necessary for license renewal and submit same for review to the Board or its designee, by July 31, 1999. None of the continuing education taken to meet this renewal requirement may be used to renew Respondent's license in 2001.

(9) Completion of Graduate Level College Course

Respondent shall, at his own expense, complete (ie: attend and receive a passing grade in) a 3(or more)-credit, graduate-level ethics (or business ethics) college course, with prior approval of same by the Board or its designee. The instructor need not know of this stipulation. The requirements of this paragraph shall be in addition to the continuing education requirements for license renewal, above.

(10) Peer Supervision

(a) Peer Supervision – first month.

Respondent shall, at his own expense, engage in close, mentoring supervision with a mental health counselor (or related mental health professional such as a psychologist), knowledgeable in ethics and approved by the Board or its designee. Such supervision shall continue, at least once per week for the first month, commencing with the date this Order is entered by the Board. Such supervision shall include coverage of Respondent's entire caseload and close monitoring of issues regarding ethics. Respondent shall engage in such supervision within one week of the date of entry of this Order.

(b) Peer Supervision – remaining thirty five months.

Respondent shall thereafter, at his own expense, continue to engage in close, mentoring supervision with a mental health

counselor (or related mental health professional such as a psychologist), knowledgeable in ethics and approved by the Board or its designee. The same professional approved for the first month may continue in the capacity outlined herein. Such supervision shall continue, at least once every two weeks, for a period of thirty-five months commencing on completion of the requirements of the first month of Respondent's conditional status, as above. Such supervision shall include readings concerning ethics and appropriate protocols as mandated by the supervisor.

(i) Respondent's supervisor shall be subject to approval by the Board or its designee. Written confirmation from Respondent's approved supervisor regarding his/her willingness to provide the Board or its designee with the above information must be received by the Board prior to approval.

(ii) The supervisor's first role shall be to review the Respondent's current caseload. If the supervisor thinks that there are changes that should be made to either improve Respondent's practice or to avoid ethical violations, the Respondent shall take appropriate steps per the approval of the supervisor.

(iii) Respondent's program of supervision shall involve not less than one hour of supervision for every eighty (80) hours of client contact. If, for any reason, the supervisor deems it necessary to end the supervisory relationship with Respondent, the supervisor shall immediately notify the Board of such termination of the supervisory relationship and the reason therefore. If such termination occurs, Respondent shall immediately undertake to establish a supervision relationship with a mental health counselor (or related mental health professional such as a psychologist) acceptable to the Board or its designee and will not be required to suspend his practice if such arrangements are made and approved within a reasonable period of time, not to exceed two (2) months. If the process of establishing a new supervision relationship exceeds two (2) months, Respondent shall not engage in the further practice until the Board has approved a new supervisor.

(iv) The Board or its designee shall have full access to information from any supervising professional related to the matters set out above. In addition, substantive detailed reports by the supervising professional shall be submitted on a quarterly basis to the Board or its designee commencing on the date of entry of this Order. Information provided in these

reports shall include discussion of Respondent's progress regarding appreciation of ethics.

(11) Interview with the Board or its designee.

Respondent shall appear in person for interviews with the Board or its designee upon request.

(12) Re-issue of License.

Within five (5) days of the date of entry of this Consent Order, Respondent shall submit license to the Board for a re-issued license labeled "conditioned".

(13) Out of State Practice/Residence.

Before any out-of-state practice or residence can be credited toward fulfillment of these terms and conditions, Respondent shall first notify the Board before beginning such practice. If Respondent fails to notify the Board before, none of the time spent in out-of-state practice will be credited toward the fulfillment of the terms and conditions of this Consent Order.

(14) License Renewal.

In the event Respondent's license is scheduled to expire during the period this Consent Order is in effect, Respondent shall apply for renewal of the license, pay the applicable fee, and otherwise maintain qualifications to practice in the State of Vermont.

(15) Release of Information Forms.

Upon the establishment of all practitioner/patient relationships with (1) treating professionals for substance abuse treatment, and with (2) treating professionals who prescribe any medication to Respondent, Respondent shall execute all release of information forms which are necessary to authorize those

practitioners to release information described in this Consent Order to the Board, its investigators, and the Attorney General's Office. All information disclosed to the Board shall be made available to its investigators and the Attorney General's Office. Respondent shall specifically execute a consent to disclosure form which meets the requirements of 42 C.F.R. §2.31 to permit disclosure of all information regarding respondent's substance abuse treatment to the Board, its investigators, and the Attorney General's Office. Any revocation by Respondent of such a consent to disclosure during the term of this Consent Order shall be considered a violation of this Consent Order.

(16) Costs.

Respondent shall bear all costs of complying with this Consent Order.

(17) Violation of the Consent Order.

If Respondent violates the terms of this Consent Order in any respect, the Board, after giving Respondent notice and an opportunity to be heard, may revoke the terms of the conditional license and take further disciplinary action. If a complaint or charges are filed against Respondent during the term of this Consent Order, the conditional license period shall be extended until the matter is final.

(18) Reevaluation of Conditions.

In the event Respondent does not work practice within thirty-six (36) months of the date of entry of this Consent Order, Respondent may appear before the Board for reevaluation of the conditions of this Consent Order.

(19) Completion of Conditional License Period.

Upon completion of the conditional license period, Respondent may petition the Board to remove any and all conditions on his license and after formal review by the Board, Respondent's license may be fully restored by appropriate Board action. Respondent, however, must demonstrate compliance with all conditions. Furthermore, Respondent shall demonstrate, to the Board's satisfaction, that he fully complied with all the terms of this Consent Order.

D. Notwithstanding any provision above, Respondent must meet all Board requirements for license renewal and license reinstatement.

E. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a)(7).

F. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

STATE OF VERMONT

WILLIAM H. SORRELL
ATTORNEY GENERAL

Date: 3/5/99

by: William H. Ahlers
William H. Ahlers
Special Assistant Attorney General

WILLIAM GEMMELL
RESPONDENT

Date: 3/4/99

William H. Gemmell
William Gemmell

ACCEPTED AND SO ORDERED:

BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Date: 4-15-99

[Signature]
Chairperson

Entry Date: 4-15-99